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‘I have to live with it’: The people trying to hide from Google



Andrew Hornery

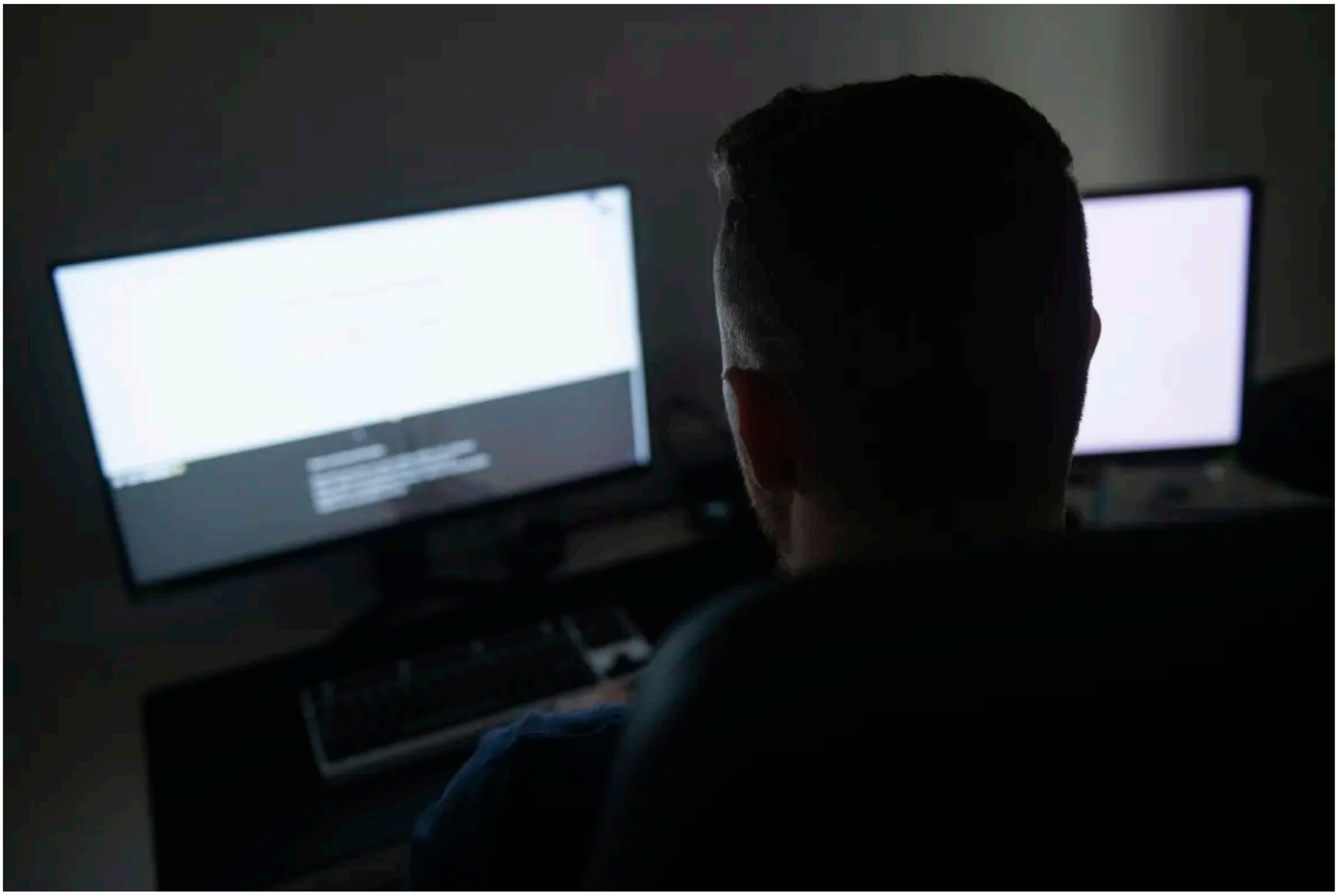
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TALKING POINTS

- **Online Reputation Management firms use three main tactics**
- **Take down notice**: They can apply to Google to remove content based on copyright and/or defamation grounds, depending on where content is posted from.
- **Deindexation:** This is when a web page or post remains online but is removed from search engine results, making it much harder to find.
- **Burying content:** Using search engine optimisation techniques, you produce positive content that pushes negative content onto a second page of results, which only a minority of people bother to check.

A convicted killer, the heir to one of the country’s largest fortunes and a star of an ugly neighbourhood race row are among the growing number of Australians hiring “online reputation managers” to escape Google’s all-pervading algorithm.

Their justifications, some more questionable than others, are as varied as the stories they are trying to bury. So too are the results, but they all share a common goal: to remove or hide unflattering, embarrassing and potentially damaging online stories that show up whenever their name is typed into a search engine.



Sydney online reputation manager Chris Miles denies he is manipulating Google’s algorithm, arguing he offers clients a way to “move on” with their lives in the digital age. RHETT WYMAN

Referred to in the industry as ORM, the tactics deployed by practitioners include outright attempts to remove content by making legally untested claims to Google, such as breach of copyright to alleging a news story is defamatory and should be taken down. Another technique is to manipulate search engine optimisation by the creation of neutral alternative content that is more attractive to Google’s algorithm and deliberately alters search results.

“I wouldn’t use the word manipulate,” says the Sydney founder of Online Reputation Management Australia Chris Miles, a business he runs from a room in his modest Kirrawee apartment above a suburban shopping centre.

Miles, who has an IT background, launched ORMA five years ago. He has only ever met one of his clients in person and requested his face not be photographed by the *Herald* given the nature of the work, which while legal, relies on anonymity as a key to doing business.

Miles’ operation is mostly virtual, with up to a dozen colleagues around the country working online for clients paying thousands of dollars over a 12-month period, depending on the contract.

“Our clients are high-profile individuals like company directors, doctors etc. If they have a drink-driving conviction in an article from 2009, we help them move on with their lives. When there is no legal avenue for suppression, it’s a tech-based solution, which in effect pushes up neutral content in search results, suppressing negative content out of the first page of results. Our research shows most people do not go beyond that in their Google searches.”

ORMs are hired for legitimate reasons, such as petitioning Google on behalf of clients to have harmful content created by detractors taken down. Adelaide photographer Melissa Williams-Brown said she had been the victim of one vexatious online troll peddling damning lies for a decade.



Melissa Williams-Brown has been trying to erase damning content on the internet for a decade with mixed results.

Williams-Brown said she knew who the US perpetrator is, but legally in Australia she had no way to effectively counteract the content – which ranges from offensive and spurious blog posts to defamatory YouTube comments. She tried to use the US court system but lost faith when the judge issued a warning to the creator to stop, "which he ignored".

"The [Australian] eSafety Commissioner's office has been helpful, but again, more [content] just gets created," she says. "I've been successful in taking content down, but as you might imagine, it takes a toll and I don't want to see it or deal with it.

"It's like playing Whac-A-Mole. I am resigned to the fact it is probably always going to exist somewhere and that my family and I have to live with it. I've tried to counteract that by publishing my own denials and explanations … over the years I've paid thousands of dollars to online reputation management companies. You need to have realistic expectations about what can be done."

What the law says

The Online Safety Act came into force on January 23, 2022, and expanded the scope of content the eSafety Commissioner can remove on behalf of Australians experiencing online bullying or abuse.

US-based website database Lumen monitors requests to remove mainstream news stories from Google. Each year thousands are from Australia, including those alleging defamation. Among those recently published on Lumen is one from August 2023 on behalf of property heir Ross Makris, whose family is estimated to be worth more than $1 billion.

In 2021, the Federal Court dismissed attempts to bankrupt Makris, however, the petition generated national media coverage. Makris hired RepGuard.Online to lobby Google to have his stories deindexed, claiming they were defamatory and damaged his reputation.



The family of Ross Makris (above) is estimated to be worth more than $1 billion. DAVID MARIUZ

Makris did not respond to queries about the application, nor did Repguard.Online.

So far his claims appear to have limited success, with stories still available on websites including *The Australian*, Adelaide's *The Advertiser* and Brisbane's *Courier Mail*.

Hiding a criminal conviction

It has been almost four years since Manisha Patel left prison after serving part of an 18-year sentence for the 2013 murder of Purvi Joshi. Her conviction was quashed when she won an appeal in 2017. She was subsequently found guilty in 2018 of manslaughter by means of excessive self-defence. She became eligible for parole in 2020.

The *Herald's* 2015 coverage of her initial murder conviction is among a slew of media articles Patel is now attempting to have deindexed from Google's search function, however, the story would remain on its original site as Google has no power over what news outlets publish. She hired Queensland firm Internet Removals to lodge a claim in 2023 alleging the articles were defamatory because it was inaccurate to call her a "criminal" and a "murderer".

It is unclear why she and Internet Removals complained to the search engine rather than local media outlets – including the *Herald* – carrying the stories given the local legal limitation period for defamation had expired and her criminal conviction remains – facts that were fatal flaws in her claim to Google.

When asked about Patel's claim, Internet Removals reputation manager Kavita Sharma said she was unable to comment on individual clients, but added "we conduct extensive checks with clients before taking on work".

"With some articles that are written, the initial allegations are never corrected to match the actual outcome … We do our best to investigate the veracity of each and every request of our clients, but can't always determine whether their complaints are supported by fact or not."

While the *Herald* and *The Age* stand by its journalism in this case, like most mainstream media outlets, the mastheads adhere to a policy on updating or removing historic online stories when issues such as material being obtained unethically, a court order being obtained or publication placing someone in harm's way can be shown. Each application is determined on its merit. Any updates usually appear as an "Editor's Note".



A scene from viral video showing Karen Ridge attempting to remove the Aboriginal flag in2019. TWITTER

In Patel's case, such a note could have said on the original story that her murder conviction had been quashed after publication, and she was subsequently found guilty of manslaughter.

However, the story about her conviction would remain findable on the *Herald's* website and via a search engine, rather than being deindexed from Google completely, which is what she and Internet Removals requested from Google.

'Not a racist'

Almost five years after going viral, Mildura travel agent Karen Ridge says she wants Google to forget her and for the world to know she is "not a racist", despite an unfortunate encounter her Aboriginal former neighbour captured on a video, which surfaces every time she types her name into a search engine.

"It's pretty ordinary when the whole world hates your guts and wants you dead; I don't really want to stir that up again," Ridge says when recalling the media frenzy around the video shot by her former neighbour Robby Wirramanda Knight in 2019.

The neighbours had been feuding for months over a roaming cat.

In the footage, Wirramanda Knight can be heard saying "this is going viral" when Ridge's former partner, McDonald's franchisee Robert Vigors, questions his Aboriginality. Wirramanda Knight then calls Ridge a "drunken racist pig" and Ridge attempts to take down his Aboriginal flag. She can be heard telling him to "go live in ya f---ing humpie".

"Just talking about it now, nearly five years later, makes me feel physically sick," she told this masthead, saying the public "only saw one side" of the dispute and there had been months of build-up, with restraining orders between the neighbours. (They no longer live near each other.)

The video remains online, attached to stories from mainstream news sites including *The Daily Mail*, *SBS* and *The Age*. Both Vigors and Ridge initially launched defamation proceedings against 30 media outlets over the stories, but have since dropped the lawsuit.

Vigors' lawyer, Mark Stanarevic, said his client was now focusing his resources on suing McDonald's after he was removed as a franchisee following the story, while Ridge confirmed she had hired an online reputation management specialist.

Such specialists first emerged in Australia less than a decade ago. Today, many are run as clandestine operations such as Miles' ORMA. However, others like Internet Removals have grown into large firms made up of IT specialists and lawyers who take on clients across Australia and internationally.

According to Google's latest Transparency Report, the platform has more than 8.8 billion requests for content to be removed.

Most commonly the notices allege either copyright infringement or defamation as the reason to have content "deindexed" from the search engine.

OnlyFans content 'stolen'

Melbourne-based OnlyFans content creator Nova Hawthorne said her livestreaming and webcam content was constantly being copied and sold without her permission. Since January 2023 she has issued 26,000 copyright infringement notices via her ORM firm.



A never-ending battle: OnlyFans content creator Nova Hawthorne.

“This is a never-ending battle for me. The stolen content has generated 13 million views since January 2023 and I estimate that’s about $50,000 in lost earnings for me,” she said.

Google investigates each claim based on the evidence presented, but it is not clear what percentage of requests are successful as the platform does not publish this information.

In Australia, hiring an ORM company is a cheaper alternative than going to court, particularly if the claim is about defamation, especially given the emotional and monetary costs in the recent unsuccessful Bruce Lehrmann and Ben Roberts-Smith defamation cases, both of which generated huge publicity.

Federal Attorney-General Mark Dreyfus is yet to finalise how the government will implement the findings of a review of the Privacy Act. However, a European style “right to be forgotten” law is being considered, effectively allowing individuals to request the removal of personal information about them from online platforms if specific criteria are met, such as it being outdated or offensive. Critics say such laws could have a significant and negative impact on Australian journalism’s ability to report legitimate, public interest news stories.

“The right to have material ‘delisted’ from Google search results was recognised by the European Court of Justice in 2014. This raises a tension between the protection of a person’s right to privacy and reputation and the right to freedom of expression, including the public’s right to access historical online media archives,” explained Melbourne University Law School Associate Professor Jason Bosland.

“In Australia, which does not currently recognise a privacy cause of action, the issue is one of defamation law.”

Back in Mildura, Ridge said she had paid $2166 to Internet Removals, which boasts it has had nearly half a million URLs removed from the internet since launching five years ago.

Internet Removal’s Kavita Sharma said she was constantly “trying to manage client expectations” when it came to delivering achievable results.

Sydney surgeon Dr William Mooney paid Internet Removals $40,000 to ensure *Herald* stories about an investigation, which ultimately found him guilty of professional misconduct and unsatisfactory conduct in relation to the deaths of two patients, were not the first thing prospective patients saw when they searched his name online. However, the stories remain online, while Mooney, struck off for one year in 2022, also sued the *Herald* for defamation. His claim was later dismissed by consent.

In Karen Ridge’s case, Internet Removals issued Google with multiple take-down notices on her behalf citing a multitude of allegedly “defamatory” stories, despite none of the defamation claims being tested in any Australian court.

“A useless exercise,” an unsatisfied Ridge said after her interview with this masthead prompted her to ask Internet Removals for a refund. She is yet to hear back.

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Andrew Hornery is a senior journalist and former Private Sydney columnist for The Sydney Morning Herald. Connect via Twitter or email.